

	Procedure Before Trial (The Rutter Group 2023) ¶¶ 8:1731, 8:1745 [court has “considerable discretion” to provide relief from the exclusion of expert testimony]; see <i>Bonds v. Roy</i> (1999) 20 Cal.4th 130, 149 [party must move to amend declaration, and it is within trial court’s discretion to grant or deny the motion].) “A motion under subdivision (a) shall be made at a sufficient time in advance of the time limit for the completion of discovery ... to permit the deposition of any expert to whom the motion relates to be taken within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a later time.” (§ 2034.610, subd. (b); see <i>Perry v. Bakewell Hawthorne, LLC</i> (2017) 2 Cal.5th 536, 541 [party should invoke section 2034.610 “as soon as the party discovers the need to submit a declaration by a previously undisclosed expert”].) “The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (§ 2034.610, subd. (c)².) The court shall grant leave to augment or amend an expert witness list or declaration only if all of the following conditions are satisfied: (a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses. (b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits. (c) The court has determined either of the following: (1) The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness. (2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:
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² Tham Declaration, ¶¶ 10-13; Exhibits 4-5 to Tham Declaration.

(A) Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony.

(B) Promptly thereafter served a copy of the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.

(d) Leave to augment or amend is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.

(§ 2034.620; see § 2034.720 [granting leave to submit tardy expert witness information]; see *Perry, supra*, 2 Cal.5th at p. 541 [“court may permit amendment of an expert witness disclosure, if section 2034.620’s conditions stated are met”]; see Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 8:1731 [“because the expert witness statute provides its own procedures for relief from exclusion [citation], relief cannot be obtained under CCP § 473(b) on the ground of ‘mistake, inadvertence, surprise, or excusable neglect,’”].)

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to augment or amend expert witness information, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2034.630.)

B. The Court Denies the Motion

As noted, section 2034.620 sets forth the three conditions Plaintiffs must satisfy in order to be entitled to augment or amend their expert designation.

	The first condition is that “[t]he court has taken into account the extent to which the opposing party has relied on the list of expert witnesses.” (§ 2034.620, subd. (a).) Defendants have presented no argument, or evidence, regarding this condition. Thus, they have waived any opposition as to this condition. The second condition Plaintiff must satisfy is establishing, “[t]he court has determined that any party opposing the motion will not be prejudiced in maintaining that party’s action or defense on the merits.” (§ 2034.620, subd. (b).) Again, Defendants’ Opposition does not address this point. Thus, they have waived any claim that they would be prejudiced should Plaintiffs be allowed to augment their expert designation. Defendants have “not shown how [their] maintenance of the action was prejudiced by permitting [Ms. McNulty] to testify; [they do] not claim [their] counsel had inadequate time or resources to properly cross-examine [Ms. McNulty] or prepare a rebuttal to [her] testimony.” (<i>Dickison v. Howen</i> (1990) 220 Cal.App.3d 1471, 1480; see <i>Guzman v. Superior Court</i> (1993) 19 Cal.App.4th 705, 708 [abuse of discretion to deny a party’s request to designate expert witnesses before trial, where the opposing party has ample time to depose those witnesses]; see <i>Kennemur v. State of California</i> (1982) 133 Cal.App.3d 907, 920 [if plaintiff’s counsel had disclosed its expert’s new opinion, and offered the expert for deposition, at the start of trial, the motion would have been granted since it involved only one witness and a limited subject matter].) Trial has been continued to January 22, 2024, meaning the parties have more than sufficient time for Defendants to designate their own expert, and the parties would have sufficient time to conduct discovery regarding the opinions of these new experts. The third condition that must be met before the Court allows Plaintiffs to augment their expert designation list is as follows: The court has determined either of the following: (1) The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness.
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(2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:

(A) Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony.

(B) Promptly thereafter served a copy of the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.

(§ 2034.620, subd. (c).)

The court agrees with Defendants that Plaintiffs cannot meet their burden under subdivision (c)(1) of section 2034.620, and Plaintiff does not argue mistake, inadvertence, surprise, or excusable neglect under subdivision (c)(2) of section 2034.620. Regardless of whether the February 2023 criminal charges affected Plaintiffs' need to understand Defendants' financial condition, Plaintiffs' Complaint explicitly sought punitive damages. Thus, Plaintiffs should have already designated a financial expert to provide an opinion to support Plaintiffs' prayer for punitive damages. (See *Adams v. Murakami* (1991) 54 Cal.3d 105, 110-111 [in determining whether the amount of punitive damages was proper, there must be evidence of the defendant's financial condition]; see *Farmers & Merchants Trust Co. v. Vanetik* (2019) 33 Cal.App.5th 638, 647 [“ ‘Evidence of a defendant's financial condition is a legal precondition to the award of punitive damages’ ”].) Furthermore, Plaintiff, already aware of the criminal proceedings, answered ready for trial and participated in jury selection between 4/27/23 and 5/1/23, all without designating an expert regarding Defendants' financial condition. Plaintiff points to nothing new that has happened since that time that would legally support the late designation of such an expert now.

For the foregoing reasons, the motion is denied.

Defendant to give notice.